Replace Process Orientation of Environmental Laws with Outcome Orientation

Environmental protection has become a prisoner of process. The entire focus of attention is the consent required to start a new specified industry or infrastructure work or modify an existing one. Processes have become more draconian than the industrial licencing processes in the 1970s.

Elaborate environmental impact assessment processes are convoluted. There is no clarity on what is intended to be achieved. Instead of quantifying the climate change and pollution impact of the project, these processes get into impacts on income, employment and livelihood of people living in the catchment area, impact on wildlife, and diversion of forest lands and natural habitats. These are important aspects but the whole purpose of assessing the impact on the environment, which is defined as environmental pollution in the Environment Act, is lost and the process degenerates into finding real and imaginable negative impacts on anything and everything.

An elaborate and hugely entangled process is not required for every project. Environmental impacts depend upon the technology, fuel chosen and the pollutants generated as by-products. For instance, a 500 MW thermal power project using coal as fuel and a specific technology and different machines to control/reuse steam, waste heat and trap effluents can be expected to generate a certain quantum of CO_2, particulate matter (ash), nitrogen oxide, sulphur oxide, etc. Such an assessment needs expertise on power plant technology and engineering, not a wildlife or forest expert. It also does not require any consultation with the tribals or villagers affected. If power generation is based on renewable technology, there is hardly any generation of CO_2 and other polluting gases.

The process orientation of environmental approval clearly needs a rethink.